

1.

CASE #	CASE NAME	HEARING NAME
CVME2514937	WELLS FARGO BANK, N.A. VS MOORE	MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

Tentative Ruling: Plaintiff filed Declaration to take Matter off calendar. GRANTED.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2204278	AUDIE MURPHY RANCH COMMUNITY ASSOCIATION VS MARSHALL	MOTION TO TAX COSTS

Tentative Ruling:

Moving party: Defendant Deandra Marshall (pro per)

Responding party: Plaintiff Audie Murphy Rancho Community Association

Motion filed: 6/22/26

Opposition filed: 7/15/26

Reply filed: 7/22/26

I. Motion for Reconsideration

Here, Defendant does not provide any new or different facts, circumstances, or law to warrant reconsideration of the previous motion. Defendant relies on the fact that she paid Plaintiff an additional \$5,785.20 on June 8, 2026. That fact was known to the parties before the court's ruling on June 11, 2026. There is no reason this information could not have been presented to the court at or before the June 11, 2026, hearing. However, even if this information had been presented to the Court, the court's ruling on the motions would have been the same as the court's ruling did not rely on the fact that Defendant had yet to satisfy the judgment in full. Further still, Plaintiff asserts the Judgment has not yet been paid in full and an uncontested balance of over \$14,000 remains due and owing. (Medioni Decl. ¶27.)

Motion for Reconsideration is DENIED.

II. Motion to Tax Costs

Memo #3 seeks an additional \$9,805 in costs. The costs are solely for attorney fees incurred from February 25, 2026 to June 11, 2026.

Defendant challenges the new Memo of Costs as violating CCP §685.040, being time-barred because the judgment has been paid in full, Plaintiff's counsel lacked corporate authorization to incur the requested fees pursuant to CC&R Section 12.1.7, and the fees requested are unreasonable.

Plaintiff argues its post-judgment fees are allowable costs properly claimed through a post-judgment cost memorandum pursuant to CCP §685.040 and §685.070(a)(6) and (b). CCP § 685.040 provides:

The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title *if the underlying judgment includes an award of attorney's fees* to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5.

(emphasis added.)¹ The statute imposes just two requirements before attorney fees may be awarded as costs: (1) the fees must have been incurred to “enforce a judgment”; and (2) the underlying judgment must have included an award for attorney fees pursuant to the statute providing that attorney fees may be recovered as costs when authorized by contract. (*Cardinale v. Miller* (2014) 222 Cal.App.4th 1020, 1025.) As noted by the court in ruling on Defendant's previous motion to tax costs, both requirements are met as Plaintiff's actions were taken in an effort to enforce the Judgment and the Judgment includes an award for attorney fees pursuant to stipulation between the parties. (See Judgment ¶¶3.) The same logic and reasoning applies here. Plaintiff is entitled to recover post-judgment attorney fees.

Defendant further argues the request for attorney fees is time-barred because the Judgment has been paid in full. Attorney Medioni explained to Defendant that the Judgment has not been paid in full given the addition of costs and attorney fees as authorized by the Judgment. (Medioni Decl. ¶¶27.) Ultimately, Defendant's arguments that Plaintiff is not entitled to an award of attorney fees as costs are not meritorious.

The fees requested are reasonable and should be awarded in full. Memo #3 seeks recovery of \$9,805 for attorney fees incurred from February 25, 2026, through June 11, 2026. The attorney fees actually incurred were \$113.75 higher than the claimed amount. The fees represent 17.5 hours of time spent by Attorney Medioni at a rate of \$525/hour. An additional 3.25 hours were spent by a paralegal at a rate of \$225/hour. (Medioni Decl. ¶¶29-30.) Attorney Medioni attaches an itemization of services rendered by his firm for the relevant time period. (Medioni Decl. Ex. 7.) Medioni notes his hourly rate on this matter represents a discount from his regular hourly rate of \$595-\$625/hour. (¶¶33.) Counsel spent thirteen (13) hours reviewing Defendant's three motions and preparing Oppositions to those motions. The information provided by Plaintiff in Opposition to the motion indicates the attorney fees requested as part of the Memorandum of Costs are reasonable and not excessive.

Motion to tax costs is DENIED.

¹ CCP §§ 685.070 and 685.080 allow a judgment creditor to pursue two alternative means of claiming post-judgment costs, including fees, incurred in enforcing a judgment: (1) by a memorandum of costs (§ 685.070) or (2) by a noticed motion (§ 685.080).